

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 12, 2023, with this Agency by A.A.A. (hereinafter, the complainant) against the GENERAL DIRECTORATE OF THE CIVIL GUARD (hereinafter, the respondent) for not having duly attended to their request to exercise the rights established in Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021).

Procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), applicable to the processing of the present complaint, have been carried out in accordance with Article 52.2 of LO 7/2021, and the following has been established:

FACTS

FIRST: The complainant exercised the right of access against the respondent without their request having received the legally established response. The complainant states that through an electronic entry registration dated October 24, 2023, their legal representative requested access to their police records contained in the INTPOL processing, providing a document designating a specific representative for the procedure, receiving a letter dated November 2, 2023, informing them that pursuant to Articles 14.2 and 3 of Law 39/2015, and being among the groups required to interact electronically, they are urged to process their request electronically (...) having to prove the representation through the Electronic Power of Attorney Registry.

In response to the submitted request, they were urged to prove the representation, subsequently sending them a letter of withdrawal for not having remedied the situation. The complainant expresses their disagreement with the letter received, specifically with the request to prove the representation according to electronic power of attorney, considering that the submission of the handwritten document designating the representative is in accordance with the law.

The complainant's representative adds that the complainant is in an irregular stay, which also prevents them from proving their representation through electronic power of attorney, as they do not have a digital certificate or a valid document in Spain to access the electronic headquarters of public administrations, since they only have a passport, so this new requirement from the respondent translates into the impossibility for an irregular citizen to access their police records.

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Additionally, they provide the letter declaring them withdrawn from the request within the present file, as more than ten days have passed since the Administration required the remedy of their request, proceeding to archive the actions.

SECOND: Once the procedure provided for in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent was granted a hearing period, to present any allegations they deemed appropriate within fifteen working days.

The respondent replies to this Agency referring to what has already been answered previously to the complainant. According to the respondent, the complaint has not been submitted through the appropriate channel, as it is an attorney representing the complainant, a legal entity, who must interact with the administration through the electronic registry. The respondent states that it has not been done through the registry enabled for this purpose. They also state that the representation of the complainant by their attorney has not been adequately proven.

THIRD: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they consider appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

I

Competence

FIRST: The Director of the AEPD is competent to resolve this matter, in accordance with the provisions of Article 48 of the aforementioned LO 7/2021, and as provided in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints submitted to the Spanish Agency for Data Protection, consisting of forwarding them to the data protection delegates designated by the controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, so that they proceed to analyze these complaints and respond within one month, prior to the admission of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis, to respond to this Agency within one month and to prove that they have provided the complainant with the due response, in the event of exercising the rights regulated in Articles 21, 22, and 23 of LO 7/2021.

On February 27, 2024, for the purposes provided in Article 64.2 of the LOPDGDD, the complaint submitted was admitted for processing. This admission agreement determines the opening of the present procedure for lack of attention to a request for the exercise of the right established in Article 22 and of LO 7/2021, regulated in Article 64.1 of the LOPDGDD, according to which:

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“1. When the procedure exclusively concerns the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted.”

II

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection, when the processing of data is aimed at the purposes indicated in Article 1 of LO 7/2021, are regulated in Articles 21, 22, and 23 of said regulation. These articles establish the information that must be made available to the interested party and recognize the rights of access, rectification, deletion, and limitation of processing. The formal aspects related to the exercise of these rights are established in Article 20 of LO 7/2021.

The communication addressed to the interested party upon their request must be expressed in a concise, intelligible, easily accessible manner, and in clear and simple language for all individuals, including those with disabilities.

For its part, the right of access is regulated in Article 22 of the aforementioned LO 7/2021 in the following terms:

Article 22. Right of the interested party to access their personal data.

1. The interested party shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. In the event that processing is confirmed, the interested party shall have the right to access such personal data, as well as the following information:

a) The purposes and legal basis of the processing.

b) The categories of personal data concerned.

c) The recipients or categories of recipients to whom the personal data has been disclosed, in particular, the recipients established in countries that are not members of the European Union or international organizations.

d) The retention period of the personal data, when possible, or, if not, the criteria used to determine

such period.

- e) The existence of the right to request from the data controller the rectification or deletion of personal data concerning the interested party or the limitation of its processing.
- f) The right to lodge a complaint with the competent data protection authority and the contact details of the same.
- g) The communication of the personal data subject to processing, as well as any available information about its origin, without revealing the identity of any natural person, especially in the case of confidential sources.

2. When the controller processes a large amount of information relating to the interested party and the latter exercises their right of access without specifying whether it refers to all or part of the data...

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of the data, the controller may require the interested party to specify the request within a period of ten days.

3. The right of access shall be deemed granted if the data controller provides the interested party with a remote, direct, and secure system that guarantees, permanently, access to all of their personal data. The notification informing the interested party of the procedure initiated through this system will allow the denial of their access request made through other means. If remote access does not provide all the information contained in section 1, the interested party shall have the right to request it.

4. When the interested party chooses a means other than the one offered that incurs a disproportionate cost, the request will be considered excessive, and the interested party will bear the excess cost that their choice entails. In this case, the data controller will only be required to ensure that the satisfaction of the right of access through the proposed means occurs without undue delay. If the interested party does not bear the excess cost, access will be provided through the means initially proposed by the data controller.

For its part, Article 20.6 of Law 7/2021 establishes:

When the data controller has reasonable doubts about the identity of the individual making the request referred to in Articles 22 and 23, they shall require the individual to provide the additional information necessary to confirm their identity within a period of ten days. If this period elapses without the information being provided, the request will be considered withdrawn by means of a reasoned resolution. The period referred to in section 4 will begin to be counted from the date on which such additional information is provided.

III

Conclusion

Based on the above, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that one of the arguments of the responding party is that the representation of the claimant is not adequately accredited and, given that the rights being requested are personal rights, this Agency shares this argument and considers that the claim should be dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by A.A.A. against D.G. OF THE CIVIL GUARD.

SECOND: TO NOTIFY this resolution to A.A.A. and to D.G. OF THE CIVIL GUARD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

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